

present an issue ripe for adjudication. But on this point, neither the Extradition Clause nor either statute at issue contains such a requirement. Minnesota’s argument effectively asks the Court to impose into the Extradition Clause, the Extradition Act, and the UCEA a deadline for a state governor to sign a rendition warrant or decline to do so. The Court is unaware of any authority supporting the creation of a court-imposed deadline under these circumstances.

Minnesota contends that Texas has uncharacteristically and unnecessarily delayed consideration of the issue, presenting evidence that in most cases, Governor Abbott has signed rendition warrants within a few weeks of Minnesota’s request. In contrast, as to Castro, Governor Abbott waited almost two months after receiving Minnesota’s extradition demand before requesting an investigation by the Texas Secretary of State, doing so only after Hennepin County Attorney Moriarty submitted an additional formal request to complete the extradition. And on the eve of Castro being released under Texas law, Governor Abbott contends that he requires more time to vet whether Castro is a fugitive. No party disputes this chronology of events, and the Court accepts that Governor Abbott has considered this particular extradition request for an atypically-long duration. Nevertheless, Minnesota identifies no statutory or constitutional provision requiring Governor Abbott to complete his investigation and decide whether to sign the rendition warrant within a particular time period.

In addition, ample caselaw supports Governor Abbott’s decision to investigate whether Castro is a fugitive for purposes of the Extradition Clause and the statutes. More than one hundred years ago, the Supreme Court explained that when a governor receives a request for the extradition of an accused individual, “[c]ertain facts . . . must appear before the governor has the right to issue his warrant.” *Hyatt v. People of State of New York*, 188 U.S. 691, 709 (1903). In particular, the governor must ensure “that the person demanded is substantially charged with a crime against the laws of the state from whose justice he is alleged to have fled, by an indictment or an affidavit, etc., and that the person demanded is a fugitive from the justice” of the demanding